

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KERI CICOLANI,

Petitioner

VS.

DANIEL LÁZARO-CUADRADO,

Respondent

) Case Number: FPT-25-378759

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Keri Cicolani (Mother) and Respondent Daniel Lazaro-Cuadrado (Father) have one minor child together, Pelayo “Ayo” (DOB: 10/23/2015, age 10). On 12/31/2025, the parties filed a Stipulation and Order regarding Mother’s Domestic Violence Restraining Order (DVRO) request and custody and parenting time.
- 2) At a 3/10/2026 hearing, the Court ordered that the parties shall have temporary joint legal and joint physical custody of Ayo, with Father to have parenting time with Ayo commencing 4/13/2026 as follows:
 - a. Alternating weekends from Friday after-school pick up to Monday morning school drop off. Pick-ups and drop-offs shall be at 12pm if school is not in session.
 - b. Wednesday after-school pick up to Thursday morning school drop off. Pick-ups and drop-offs shall be at 12pm if school is not in session.
 - c. All non-school related custody exchanges shall occur at Mother’s home, curbside.

- 1 d. The parties shall have the following holiday schedule: (1) Father shall have the whole
2 week of President's Week Recess in even-numbered years. Mother shall have the whole
3 week of President's Week Recess in odd-numbered years; and (2) Mother shall have the
4 whole week of Spring Break in even-numbered years. Father shall have the whole week
5 of Spring Break in odd-numbered years.
- 6 e. Father's request to take Ayo to Spain to visit relatives for three weeks this summer is
7 denied without prejudice. However, the parties may agree in writing to permit
8 international travel with Ayo. Should there be such travel, the traveling party shall
9 provide the other party with travel information including flight details, basic itinerary,
10 locations Ayo will be staying, and contact information.
- 11 f. Ayo shall continue attending Children's Day School in San Francisco for the 2026–2027
12 school year. The parties shall share the tuition equally and shall fully and timely
13 cooperate to sign any forms required for Ayo to attend the school for this school year.
14 The parties shall also fully and timely cooperate to complete any steps and provide any
15 information necessary for Mother to apply for financial aid for Ayo.
- 16 g. Mother's unopposed request seeking exclusive use and possession of the apartment
17 located at 159 Dolores St. #4, San Francisco, CA 94103 is granted.
- 18 h. Effective 4/13/2026, the parties shall share equally the following costs: reasonable
19 uninsured healthcare costs (including dental and therapy costs), extracurricular activities
20 (including "enrichment activities designed for children with ADHD") in which the child
21 is currently participating and mutually agreed extracurricular activities going forward,
22 testing, and school supplies. (See Findings and Order After Hearing filed 4/13/2026.)
- 23 i. A review hearing is set for 5/28/2026 at 9am in Department 404. Both parties shall file
24 and serve update declarations at least 10 days before the hearing.
- 25 j. Father's request that the parties participate in coparenting counseling and split the costs
26 of counseling equally is continued to the review hearing date set forth above.
- 27 3) On 5/14/2026, Father filed a Supplemental Declaration requesting the following: (1) joint legal
28 and joint physical custody; (2) 50/50 custodial timeshare schedule, with each parent spending
29 alternating weeks with Ayo except on Christmas, New Years, vacation on Summer, Winter, and

1 Spring, and various holidays; (3) Court order allowing Ayo and Father to visit their relatives in
2 Spain during the summer from June 20 to July 11, 2026; (4) Parallel parenting arrangement
3 instead of a co-parenting arrangement; (5) Mother to pay for the private school tuition for
4 Children's Day School; (6) Admonish Mother that continued harassment of Father and disturbing
5 his peace during his custodial timeshare will result in an order requiring all communication to
6 occur exclusively through a Court-approved platform. Father states the current custody and
7 visitation schedule has caused Ayo anxiety and distress, and Mother persistently deprived Ayo of
8 time with him by repeatedly calling and texting Father during his parenting time. Father identified
9 several incidents that occurred before the Court issued its order on 4/13/2026. Father also states
10 Mother's agreement to allow Father to travel to Spain with Ayo for three weeks is overwhelming
11 proof that a 50/50/ timeshare is appropriate. Father states cooperative communication with
12 Mother is unworkable, citing incidents of Mother's counsel withdrawing from the case due to
13 breakdown in communication and Mother filing a police report after the parties had a scheduling
14 disagreement.

15 4) On 5/14/2026, Father filed an Income & Expense Declaration.

16 5) On 5/18/2026, Mother filed an Update Declaration, requesting that (1) the Court maintain the
17 custody and visitation orders; (2) the Court order co-parent counseling; (3) Mother agrees to use
18 Our Family Wizard or other platforms to communicate with Father; (4) the Court maintain its
19 order on education and that Ayo be allowed to stay at Children's Day School for the foreseeable
20 future. Mother disagrees with Father's request for a 50/50 timeshare and parallel parenting,
21 stating Father has repeatedly failed to return Ayo on time and has exposed Ayo to custody
22 conflicts by bringing a police officer to Mother's home. Mother states Father refuses to cooperate
23 on coparenting scheduling; Father also does not have a permanent address, and he refuses to tell
24 Mother Ayo's whereabouts. Mother further states Father has told Ayo repeatedly that Mother is
25 "a liar" and "mean" during his parenting time, which has caused great emotional harm to Ayo.
26 Stemming from this concern, Mother states that she agreed to let Ayo travel to Spain with Father
27 for three weeks but requests that the Court order Father to return Ayo at the end of their trip.
28 Mother also states Father filed an incomplete Income & Expense Declaration.

1 **B. Findings and Order**

- 2 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
3 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
4 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
5 child is the United States.
- 6 2) The Court finds it is in Ayo's best interest to maintain the current custody and parenting time
7 order set forth in the Findings and Order After Hearing from the 3/10/2026 hearing, filed
8 4/13/2026, with a modification that pursuant to the agreement between the parties, Father shall be
9 permitted to take Ayo to Spain for three weeks during the summer. Father shall, forthwith,
10 provide Mother with travel information including flight details, basic itinerary, locations Ayo will
11 be staying, and contact information for the duration of the trip. Father shall return Ayo to
12 Mother's care at the end of the trip.
- 13 3) The Court finds that the parties' disputes regarding custody and parenting time are causing harm
14 to Ayo. In addition, Mother states in her update declaration that she agrees with Father's request
15 for the parties to participate in coparenting counseling. The Court therefore orders the parties to
16 participate in coparenting counseling for at least 10 sessions and shall split the costs of
17 coparenting counseling equally. (Fam. Code, §§ 3011, 3190.) On or before 6/15/2026, Father
18 shall provide to Mother the names and contact information for 3 proposals for coparenting
19 counselors and Mother shall select 1 of the 3 individuals on or before 6/22/2026. If the parties are
20 unable to agree to the selection of a coparenting counselor, they may submit to the Court, on or
21 before 6/29/2026, the names of 2 coparenting counselors and a brief explanation of their reasons
22 for their choices, for the Court to select the coparenting counselor.
- 23 4) The parties shall not interfere with each other's parenting time by calling or texting the other
24 party excessively during the other party's parenting time.
- 25 5) The parties shall not speak negatively about each other to or within earshot of Ayo.
- 26 6) The parties shall not discuss the family court case with Ayo, except to inform him of parenting
27 times.
- 28 7) Effective 6/1/2026, the parties shall communicate solely via Our Family Wizard, and only about
29 Ayo. All communication shall be peaceful and respectful.

- 1 8) Father's request for the Court to reconsider its prior order for Ayo to attend Children's Day
2 School for the 2026-2027 school year and for the parties to share the tuition equally is denied.
3 Father has presented no new facts or evidence that could not have been presented before or at the
4 3/10/2026 hearing. Moreover, Father's Income and Expense Declaration filed on 5/14/2026
5 shows he has \$500,000 in easily saleable investments which can be used to pay private school
6 tuition for the 2026-2027 school year.
- 7 9) If either party has a new request relating to custody and parenting time or any financial matters,
8 they may file and serve a new request for order with the Court.
- 9 10) All other orders not in conflict with these orders shall remain in full force and effect.
- 10 11) Mother's attorney shall prepare the Findings and Order After Hearing.
- 11 12) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
12 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
13 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
14 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
15 proposed order after hearing directly to the court. Failure to submit the order after hearing within
16 10 days may allow the other party to prepare a proposed order and submit it to the court in
17 accordance with CA Rules of Court, Rule 5.125(d).
- 18
19
20
21
22
23
24
25
26
27
28
29